

STATE OF OHIO
STATE EMPLOYMENT RELATIONS BOARD

In the Matter of:	:	2017-MED-10-1206
	:	
Ohio Patrolman's Benevolent Association	:	SWORN POLICE OFFICERS
	:	
and	:	FACT-FINDING REPORT AND RECOMMENDATIONS
	:	
Boardman Township	:	November 20, 2108

APPEARANCES

For the Union:

Adam Chaloupka, Attorney
Patrick Klingensmith Co-Director, Patrolman
Daryn Tallman, Co-Director, Patrolman
Greg Stepuk, Detective
Joseph O'Grady, Patrolman
Kevin Stratton, Patrolman

For the Employer:

Robin Bell, Labor Consultant
Jason Loree, Township Administrator
Stephanie Landers, Deputy Administrator
Todd Werth, Chief of Police

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I. BACKGROUND

The Fact Finder was appointed by the State Employment Relations Board (SERB) on July 18, 2018 pursuant to Ohio Revised Code Section 4117.14(C)(3). The parties mutually agreed to extend the fact-finding period as provided under Ohio Administrative Code Rule 4117-9-05(G). The parties are the Ohio Patrolmen's Benevolent Association (Union or OPBA) and Boardman Township, Ohio (Boardman, Employer, or Township). The parties have had a collective bargaining relationship for many years. Boardman Township is located in Mahoning County and has a population of a little over 40,000 according to the 2010 U.S. Census. It is a suburb of and covers 23.8 square miles south of Youngstown, Ohio. The Union represents all sworn police officers in the position of patrolman in the Boardman Police Department. There are approximately 43 members in the bargaining unit.

II. THE HEARING

A hearing was held on September 20 and October 31, 2018 at the Boardman Township Administration Building, 8299 Market Street, Boardman, Ohio. Each party provided a pre-hearing statement. On September 20, the Fact Finder attempted mediation and discussions were fruitful. Upon reconvening on October 31, 2018, progress was made, but not all issues could be resolved and a hearing was held. Prior to the hearing, the parties met approximately eight times to negotiate a successor collective bargaining agreement. They reached tentative agreements on a number of issues. Those tentative agreements reached by the parties during negotiations are hereby adopted and incorporated into this Report and Recommendation.

At the hearing, the parties jointly introduced into evidence the Agreement Between the Boardman Township and the Ohio Patrolmen's Benevolent Association (OPBA), January 1, 2015 to December 31, 2017, SERB Case No. 2014-MED-10-1408. Each party made a presentation to the Arbitrator. In addition to the Agreement between the parties, they introduced the following exhibits during the hearing:

City Exhibits

1. Minimum Manning.

2. General Fund Property Tax Revenue History.
3. General Fund Revenue vs. Expenses (2009-2017).
4. Total Township Revenue vs. Expenses (2009-2017).
5. Police Department Expenses vs. Revenue (2010-2017).
6. Police Department Salaries (2010-2017).
7. Township Payroll.
8. Township Millage Rates.
9. Board of Trustees Resolutions.
10. Wage Scale History.
11. Fact Finding Report of Dennis Byrne, Case No. 08-MED-10-1153.
12. Agreement Between the Boardman Township and the Ohio Patrolmen's Benevolent Association (OPBA), January 1, 2009 - December 31, 2011.
13. Comparables on Wages.
14. Comparables.
15. Comparables - 20 Year Compensation.
16. Historical Internal Wage Increase Comparison by Year.
17. Costing of Union Proposal.
18. Costing of 1%, 1%, 1%.
19. Bereavement Leave Comparison.
20. Costing of 2%, 2%, 2%.
21. Costing of 2%, 2%, 2%.
22. Costing of 2%, 2%, 2%.
23. Tentative Agreements.

OPBA Exhibits

1. Proposed contract language.
2. Proposed 16 Year Scale.

The issues remaining at conciliation were:

1. Article 16, Minimum Staffing.
2. Article 21, Compensation.
3. Article 24, Shift Differential/On-Call Pay.
4. Article 28, Holidays.
5. Article 35, Bereavement Leave.

The Ohio public employee bargaining statute provides that SERB shall establish criteria the Fact Finder is to consider in making recommendations. The criteria are set forth in Rule 4117-9-05(K) and are:

- (1) Past collectively bargained agreements, if any, between the parties;
- (2) Comparison of the unresolved issues relative to the employees in the bargaining unit with those issues related to other public and private employees doing comparable work, giving consideration to factors peculiar to the area and classification involved;

- (3) The interests and welfare of the public, the ability of the public employer to finance and administer the issues proposed, and the effect of the adjustments on the normal standard of public service;
- (4) The lawful authority of the public employer;
- (5) Any stipulations of the parties;
- (6) Such other factors, not confined to those listed above, which are normally or traditionally taken into consideration in the determination of the issues submitted to mutually agreed-upon dispute settlement procedures in the public service or in private employment.

The Fact Finder hopes the discussion of the issues is sufficiently clear to the parties. Should either or both parties have any questions regarding this Report, the Fact Finder would be glad to meet with the parties to discuss any remaining questions.

III. INTRODUCTION

Township Position

The Township wants to provide the proper level of service to its citizens within reasonable means. Its general fund is based mainly on real estate taxes collected from various levies and local government distributions. Since 2009, the Township has taken steps to ensure that expenditures are in line with revenues. In 2016 and 2017, however, expenditures exceeded revenues. The Township has attempted to keep Police Department revenues and expenditures in line, but expenses have exceeded Police Levy revenues for the last three years, in part due to escalating salary costs. It has sought approval of a 2.9 mill replacement levy to replace a 1976 3.2 mill levy that was generating only 1.2 mill.

The Township generally seeks internal consistency in wage increases with its various bargaining units, the OPBA, IAFF, AFSCME, and Teamsters. The OPBA also represents the Dispatcher and Rank units. The Police Patrolmen are paid well compared to comparable jurisdictions and granting the increases sought by the OPBA would increase costs too greatly.

Union Position

The Union has worked with the Township to keep expenses within its means. During the Great Recession, the Union agreed to a two-tier wage system in lieu of possible layoffs. Those Patrolmen hired after 2009 were saddled with lower pay and more steps to reach the maximum pay of more senior officers. In light of the stronger and growing economy, and a trend started in the last round of negotiations and the recent Firefighters and Dispatchers contracts, the Union seeks a reduction in the steps of the wage scale and wage increases so the Patrolmen are more in line with other jurisdictions. This is necessary to attract and retain qualified officers, since about seven Patrolmen have left since the last contract was ratified, some citing lack of pay. Despite the modest wage increases received in the expired collective bargaining agreement, the Patrolmen are underpaid, especially those hired since 2009.

The Employer cannot argue an inability to pay. It has sufficient resources to afford the Union's demands. The Union will show a well-paced and growing economy exists in Boardman, in Ohio, and in the country. Despite the financial limitations of a township, Boardman is financially benefitting from a recent \$300,000 reimbursement from the Ohio Bureau of Workers' Compensation as well as the recent passage of a levy in May 2018. The levy is expected to bring in an additional \$1.5 million to the budget. According to its 2016 Comprehensive Annual Financial Report (CAFR), Boardman had a healthy combined general and special revenue funds balance to expense ratio of 41.2%, which would be anticipated to increase with the influx of new revenue from the levy. The Union's proposals are reasonable and affordable and should be adopted by the Fact Finder.

Issue: Article 16, Minimum Staffing

Employer Position: Delete Article 16.

Union Position: Maintain current contract language.

Findings: The Township wants to provide the proper level of service to the public. However, the Union is pursuing radical changes to the wage schedule that could cost the Township much

more in the future than anticipated. Since the Township has based its economic planning on the existing wage schedule, it must have a vehicle for other cost savings to offset the cost of the Union's proposals if they are recommended by the Fact Finder. If the Township cannot afford the wages sought by the Union, then it must be able to cut the number of employees required for minimum staffing. Finally, those jurisdictions that still have contractual minimum manning provisions have lower minimum levels or severance provisions in the case of layoffs.

The Union argues that the current Agreement requires five full-time sworn officers be on duty and the requirement should remain unchanged. The Employer consistently complies with the requirement and quite often exceeds the minimum. It does not saddle the Employer with burdensome scheduling or financial responsibilities and patrol officers are able to obtain time off when needed without creating overtime. Any reduction in minimum staffing will lead to an increase in the workload for patrol officers and an unsafe environment. The current staffing levels work for the parties and should not be changed.

The Township seeks the change here based on the OPBA's wage proposals. As noted below, the Fact Finder is not recommending the OPBA's proposal as to wages, so the need for the Township's proposed change here is not as great. Additionally, minimum staffing requirements are typically seen by the bargaining unit as a safety issue. The more officers out in the field, the safer they are. The Fact Finder notes that the OPBA did indeed make this point in its position. For these reasons, the Fact Finder concludes the Township did not demonstrate the need to delete this article.

Recommendation: No change in Article 16. Keep minimum staffing at current levels.

Issue: Article 21, Compensation

Union Position: Reduce the current steps from 14 to 11 for officers hired after January 1, 2010. Maintain the top rate of pay at \$30.47 per hour for new step 10 (former step 14). Patrol officers hired after January 1, 2010 will receive additional wage compensation if their current step changes during the duration of the contract. They will not receive an additional base wage

percentage increase. Patrol officers currently topped out at the 14th step of the existing wage scale and hired before January 1, 2010 will receive a 2% base wage increase at new step 10 for 2018, 2019, and 2020.

Employer Position: A 1% pay increase for each of the three years of the contract at each step of the wage scale.

Findings: During the recent recession, the Union chose to negotiate a two-tier wage system in lieu of potential layoffs. This system affected those hired after January 1, 2010 the hardest. Their pay is lower and there are more steps to reach the maximum pay of the senior officers. There is little dispute that the economy, both nationally, statewide, and locally, has improved and the Township is in better shape than when the two-tier system was negotiated. The only real issue is what can the Township reasonably afford, not whether it can pay any increases. Additionally, the parties negotiated the elimination of two steps during the last round of negotiations, and the Township and the Firefighter and Dispatcher units eliminated steps in their most recent contracts. Therefore, the Union seeks a further reduction in steps. It believes this is necessary to attract and retain qualified patrol officers. In the last several years, about seven officers have left the Department, some because of the lower pay. Reducing the steps will also bring the Department more in line with comparable police departments in the region and will continue the intent that the two-tier wage scale would not be permanent. According to the Union, the Township's offer of 1% increases is insufficient. This is not a situation where there is an inability to pay an increase. The Township's recent negotiations with the Firefighters is estimated to cost approximately \$240,000 over its duration and the Township has given raises to its administration and non-bargaining employees. The Union seeks similar increases.

The Township counters that its general fund is based primarily on real estate taxes collected from various levies and local government distributions. The Township has taken steps in recent years to ensure expenditures are in line with revenues, but they exceeded revenues in 2016 and 2017. Further, the Township has attempted to keep Police Department revenues and expenditures in line, but expenses have exceed Police Levy revenues for the last three years, in

part due to escalating salary costs. It has sought approval of a 2.9 mill replacement levy to replace a 1976 3.2 mill levy that was generating only 1.2 mill. Finally, the Township generally seeks internal consistency in wage increases with its various bargaining units. It has settled contracts with its other units for 2% each year or less at the top rate of pay. Finally, the Police Patrolmen are paid well compared to comparable jurisdictions and granting the increases sought by the OPBA would increase costs too greatly.

Generally speaking, the economy both nationally, in Ohio, and in northeast Ohio has rebounded from the recession of 2007-2009. The Youngstown area, though, was harder hit than most of Ohio. Its unemployment rate remains higher than the national and Ohio average, its average income level is less, and job growth has been lower. Boardman Township, however, is a bright spot in the Youngstown area. Its median earnings per worker and household income are close to the national average. (See towncharts.com). In May of this year, Boardman passed a levy for safety forces, which is expected to raise an additional \$1.5 million. Additionally, Boardman's 2016 CAFR showed a combined general and special revenue funds balance to expense ratio of 41.2%.

Given this information, the Fact Finder concludes that the overall years to get to the top pay rate can be reduced, but not as many as the OPBA proposes. Additionally, the Fact Finder finds that, rather than simple wage increases, steps should be added in the wage scale so that a step increase is made each of the first 10 years of the scale. Currently, a patrol officer would receive a step increase for each of the first four years. After four years, the steps increase every two years. Patrol officers would receive a wage increase during the odd number years, but this would not necessarily show to a potential new hire. Adding steps for years 5, 7, and 9 would show a step increase for each of the first 10 years an officer is employed. This should help address any impression a candidate for hire might have that his or her wages would not increase as quickly as other jurisdictions and might help attract potential new hires to work for the Township.

Furthermore, the Township's offer of 1% is too little, while the OPBA's proposal of step reductions and wage increases is too much. While the economy is headed in the right direction, it is imprudent to place too great a cost on the Township during this contract. Doing so could put the Township back in a position where cuts are needed. If the economy continues to improve as expected, the OPBA can seek additional reductions and/or wage increases for the next contract. Bargaining is incremental and not all increases a bargaining unit desires can, or should be, granted in a single contract. To be more competitive with other police departments in the area, emphasis has been placed on the lower steps of the wage scale. Therefore, the Fact Finder recommends a wage increase of 2% in the first year of the contract. In years two and three, the Fact Finder recommends 2% in all but the highest step on the wage scale. In years two and three, the highest wage step is to be increased 1.5%, so that the Township can fund the 2% increases for all the lower steps. Patrol officers at the top rate should not be penalized, though. The Fact Finder recommends that the .5% wage increase that the top step does not receive in the wage scale be paid in a lump sum. This will help the Township save some money by not adding to the top wage rate. Finally, these increases are consistent with those negotiated by the Township with its other bargaining units of 2% each year or less at the top rate of pay.

Recommendation: The Fact Finder recommends that Article 21 be amended as follows:

ARTICLE 21
COMPENSATION

Section 1. Pay Ranges and Rates. *As of the effective date of this agreement, all the bargaining unit members hired prior to January 1, 2010, are in the top pay step.*

- A. Effective January 1, ~~2015~~ **2018**, the following pay schedule will be effective for *all* bargaining unit members ~~hired after January 1, 2010.~~ *Said pay schedule reflects a two percent (2%) general increase.*

Step	Years of Service	2018	
1	Entry	\$17.62	\$36,643.50
2	After 1 year	\$18.71	\$38,910.96
3	After 2 years	\$20.14	\$41,882.22

4	After 3 years	\$21.14	\$43,963.02
5	After 4 years	\$21.95	\$45,663.36
6	After 6 years	\$22.97	\$47,785.98
7	After 8 years	\$24.11	\$50,142.18
8	After 10 years	\$24.26	\$50,464.00
9	After 12 years	\$25.26	\$52,540.00
10	After 14 years	\$26.50	\$55,116.00
11	After 16 years	\$29.08	\$60,487.00
12	After 18 years	\$29.38	\$61,102.00
13	After 19 years	\$29.67	\$61,717.00
14	After 20 years	\$31.18	\$64,856.70

- B.** Effective January 1, ~~2016~~ **2019**, bargaining unit members' wages shall be increased by ~~two percent (2%)~~ **shall be paid in accordance with their years of service** as set forth below.

Step	Years of Service	2019	Annual
1	Entry	\$17.97	\$37,376.37
2	After 1 year	\$19.08	\$39,689.18
3	After 2 years	\$20.54	\$42,719.86
4	After 3 years	\$21.56	\$44,842.28
5	After 4 years	\$22.39	\$46,576.63
6	After 5 years	\$22.97	\$47,785.98
7	After 6 years	\$23.43	\$48,741.70
8	After 7 Years	\$24.11	\$50,142.18
9	After 8 years	\$24.59	\$51,145.02
10	After 9 Years	\$25.26	\$52,540.00
11	After 10 years	\$26.50	\$55,116.00
12	After 12 years	\$29.08	\$60,487.00

13	After 14 years	\$29.38	\$61,102.00
14	After 16 years	\$29.67	\$61,717.00
15	After 18 years	\$31.65	\$65,829.55

- C. Effective January 1, ~~2017~~ **2020**, bargaining unit members' wages shall be increased by ~~two percent (2%)~~ **shall be paid in accordance with their years of service** as set forth below.

Step	Years of Service	2020	Annual
1	Entry	\$18.33	\$38,123.90
2	After 1 year	\$19.46	\$40,482.96
3	After 2 years	\$20.95	\$43,574.26
4	After 3 years	\$21.99	\$45,739.13
5	After 4 years	\$22.84	\$47,508.16
6	After 5 years	\$23.43	\$48,741.70
7	After 6 years	\$23.90	\$49,716.53
8	After 7 Years	\$24.59	\$51,145.02
9	After 8 years	\$25.08	\$52,167.92
10	After 9 Years	\$25.76	\$53,590.80
11	After 10 years	\$27.03	\$56,218.32
12	After 12 years	\$29.08	\$60,487.00
13	After 14 years	\$29.38	\$61,102.00
14	After 16 years	\$29.67	\$61,717.00
15	After 18 years	\$32.12	\$66,816.99

Section 2. At the discretion of the Employer, an applicant for employment may be given service credit for prior police service and be hired in at a rate other than the entry level rate.

Section 3. Bargaining unit members shall be entitled to shift differential pursuant to Article 24.

New
Letter of Understanding
Lump Sum Payment

1. Those employees at the top rate of pay as of January 1, 2019, shall receive a single lump sum payment in the amount of \$324.00, to be paid no later than the first pay period of February 2019.
2. Those employees at the top pay rate of pay as of January 1, 2020, shall receive a single lump sum payment in the amount of \$329.00, to be paid no later than the first pay period of February 2020.

Issue: Article 24, Shift Differential/On-Call Pay

Union Position: Section 1: Pay the shift differential to all bargaining unit members when they work as a patrol officer. Section 3: Delete the provision limiting the ability of a police officer placed on “on-call” status from receiving additional compensation in addition to the seven hours until such time as the officer actually works in excess of three hours during the week as a result of required responses.

Employer Position: Maintain current contract language. However, if Section 3 remains unchanged, the Employer could accept that the shift differential be paid to all officers when working as a patrol officer.

Findings: As to Section 1, Shift Differential, the current Agreement provides that patrol, traffic, K-9, and crime scene technicians receive a \$.50 cent differential for afternoon shift and a \$.65 differential for midnight shift. However, detective bureau or other special operations and task force assignments are not eligible for the differential. The Union submits that they do not receive it even if they volunteer or are requested to work a patrol, traffic, K-9, or crime scene assignment. The Union believes that all bargaining unit members should receive the differential when they work as a patrol officer, since it is designed to compensate individuals for working the less desirable shifts. It should not matter what the assignment is, but rather when the member works. The Township would be willing to accept the Union’s proposal if the on-call language in Section 3 remains the same.

Regarding the Section 3 on-call language, the OPBA wants the same language as the Rank unit. Currently, a Lieutenant or Sergeant called out receives overtime as soon as he or she is called out. Meanwhile, this bargaining unit must work three hours before getting on-call pay. Under the current agreement, an officer assigned to the detective bureau or special operations is on-call for an entire week and receives an hour of on-call pay for each day of the week, that is, a total of seven hours for the week. However, the officer goes not get paid if called out until the officer works more than three hours. During that week of being on-call, the officer must remain fit for duty. In other words, he or she cannot have a drink with dinner or a beer with family or friends in the evening in case the officer is called out.

Boardman counters that the language the Union seeks to change was just negotiated in the last round of negotiations that resulted in the current contract. There was some quid pro quo for the language and now the Union seeks to change it. It should not be deleted at this time. The on-call language at issue applies to detective bureau employees only. On-call weeks are rotated, so that each detective bureau employee is on call 15 weeks in the year. Employees in the Police Department were called out on 23 days out of 365. On 10 occasions, these were Detectives, the other 13 were either Lieutenants or Sergeants. The language in the Rank contract also applies to Captains who take calls during the weeks they are on-call. The language compensates them for having to take calls. On the other hand, Detectives are paid an hour each day whether they are called out or not. Since they are infrequently called out, they are compensated for the inconvenience of being on-call. The Rank language compensates the Captains for the inconvenience of having to take calls at home. Finally, since Detectives receive an hour each day, compensating them whenever they are called out would give the appearance of getting paid twice for the same work.

The Fact Finder concludes that the OPBA has not established a need to change the on-call language. It was negotiated for this current contract and there was no showing that circumstances have changed. Detectives are compensated an hour each day for the inconvenience of being on-call for the week. They are not often called out. The Rank language

applies mainly to Captains, who take calls away from work while on-call. Paying them for each call out compensates them for that inconvenience. Given the difference in the circumstances between Detectives and Captains, the difference in the language makes sense. On this record, the Fact Finder determines there is no need to change the language at this time.

Recommendation: The language of Section 1 is to be modified as follows:

Officers assigned to patrol, traffic, K-9, or crime scene technician shall be eligible for shift differential payments. Officers assigned to special operations who work as a patrol officer shall also receive the applicable shift differential while they work as a patrol officer. The shift differential payments are:

Afternoon: fifty (\$.50) cents per hour

Midnight: sixty-five (\$.65) cents per hour

No change in the Section 3 on-call language.

Issue: Article 28, Holidays

Union Position: Add the Friday after Thanksgiving as a holiday listed in Section 1. Change the language of new Section 5 (a new Section 3 has already been agreed upon by the parties) so that bargaining unit members will be able to take a personal day so long as 72 hours notice has been given. Finally, add a new section to allow a Patrolman assigned to the detective bureau or special operations be permitted the option to work three holidays.

Employer Position: Do not add an additional holiday. Add language that the Township will exercise its best efforts to permit a bargaining unit member to use a personal day if 72 hours notice is given.

Findings: The Firefighter and Dispatcher contracts allow for 11 holidays. The Union seeks the same number of holidays. Additionally, the current agreement permits a Patrolman to add up to eight hours to his or her accumulated time (e.g., compensatory time) in lieu of being paid double time for actual work performed on a holiday. The Union proposes to increase this to 16 hours. Currently, scheduling personal days is subject to the Employer's operational needs. This often

means that a personal day cannot be used when requested. The Union suggests adding language to guarantee that a personal day can be used so long as the member gives 72 hours notice and the personal day would not create more than two overtime spots on the schedule. This would bring the contract in line with the Rank contract. Finally, allowing a Patrolman assigned to the detective bureau or special operations the option to work three holidays would also bring this contract in line with the Rank contract.

The Township contends that now is not the time to add holidays. The Township has proposed or is willing to consider certain provisions that will increase its costs. Adding another holiday will further increase these costs, as holidays typically must be filled on overtime. Adding to the number of hours of an officer's accumulated time will also increase costs, since accumulated time is often chosen over being paid and accumulated time taken also tends to require overtime to fill. Further, according to the Township, adding a guarantee for personal days does not take into account when staffing levels might otherwise be low due to vacations, sick leave, injury, and so forth. The Township needs the flexibility to be able to deny personal days when necessary due to operational needs. Finally, increasing the number of holidays that can be worked will further add costs to the contract. The Township understands that costs will increase based on the wage increases and other items proposed. It must be a good steward of the taxpayers' money and make certain that costs do not increase too greatly.

The Fact Finder believes that wage increases are the most important issue to the bargaining unit. Wage increases are recommended that are in line with those received by the other bargaining units. Additionally, the wage scale is to be reduced by two years. These will increase the Township's costs and go directly into bargaining unit members paychecks. Now is not the time to add a holiday or to accumulated time. This is particularly so because such items tend to multiply, since accumulated time and holiday time tend to be filled using overtime. The same can be said for allowing officers to work an additional holiday. As noted above, bargaining is incremental and, should the Township's finances continue in a positive direction, the OPBA can seek additional time off in another round of negotiations.

As to personal days, the Fact Finder understands the bargaining unit members' frustration in trying to take personal days. They would like to know they can take such days. However, guarantees are difficult to accommodate and can lead to unintended, unfavorable consequences. The Fact Finder believes that, with sufficient notice to the Chief, scheduling can be done so that bargaining members know far enough in advance that they can take a personal day.

Recommendation: No change in the current language as to the number of holidays or the option to work more holidays. Delete the second sentence of new Section 5 and replace with the following:

A request to take a personal day must be given at least 120 hours in advance of the date to be taken. The Department then has 48 hours to fill the shift. The Department will give the officer requesting the personal day at least 72 hours notice whether the request is to be granted, so long as doing so will not create more than two overtime shifts overall.

Issue: Article 35, Bereavement Leave

Union Position: Adopt the language found in the Firefighter contract.

Employer Position: Adopt the language found in the OPBA contract for the Dispatcher unit.

Findings: The current contract provides for up to three days of sick leave with pay for the death of a bargaining unit member's immediate family member. The Union seeks paid leave that is not deducted from sick leave and an expanded definition of "immediate family members." The Employer proposes language found in the OPBA Dispatcher contract, which is similar to language in the AFSCME and Teamsters contracts. The Firefighters contract provides for a system of days off based on the distance to the funeral of the deceased family member and the definition of the family member. The Employer's proposed language allows for three days deducted from sick leave with additional days at its discretion and leave for additional relatives granted by the Chief on a case-by-case basis.

The Fact Finder has carefully reviewed the language. While the Employer's proposed language continues to deduct the leave from sick leave, it provides for three days of leave for

the death of an immediate family member regardless of the distance of the funeral. It also allows for additional days with the approval of the Employer and time off for additional relatives granted by the Chief. The only difference in the definitions of “immediate family member” is that the Firefighter contract specifically includes grandparents-in-law and other relatives living in the employee’s home, while the Township’s language does not. However, as noted, the Township’s language allows the Chief to grant leave for additional family members, which could include these individual and others. Also as noted, the Township’s language guarantees three days, while the Firefighters contract provides for three days only if the funeral is more than 200 miles away. Simply put, the Fact Finder concludes that the Township’s language is more beneficial to the Patrolmen than that proposed by the OPBA.

Furthermore, the Employer’s proposal is the same as the Dispatcher contract and similar to the contract language in the AFSCME and Teamsters contracts. Adopting this language will ensure that four of the five collective bargaining agreements contain the same or similar language and will be easier to administer. The Employer has been attempting to get the same language in all the contracts, but was not able to get it in the current Firefighter contract.

Recommendation: Adopt the Employer’s proposed language as follows:

Section 1. In the case of the death of a member of the employee’s immediate family, an employee will receive three (3) consecutive working days off, deducted from the employee’s sick leave balance, and one (1) of which must include the day of the funeral. Additional day(s) may be granted under the same conditions, with the approval of the Employer.

Section 2. Immediate Family Defined. Immediate family is defined as the employee’s spouse, child, step-child, parent, step-parent, parent-in-law, sibling, half-sibling, sibling-in-law, aunt, uncle, grandparent, and grandchild. Leave for additional relatives may be granted by the Chief on a case-by-case basis.

As noted above, all tentative agreements reached by the parties during negotiations are hereby adopted and incorporated into this Award.

Dated: November 20, 2018



Daniel G. Zeiser
Arbitrator